

		Plaintiff concedes this point but argues he may recover fees incurred in consultations with a retained attorney. Plaintiff is correct. (See <i>Mix v. Tumanjan Development Corp.</i> (2002) 102 Cal.App.4th 1318, 1324.) Defendant is ORDERED to file an answer within 10 days. Clerk to give notice.
10	Wang vs. Mayenne Medical 30-2025-01532205-CU-MM-CJC	Demurrer to Complaint Defendants Mayenne Medical dba Skinspire Laser & Skin Clinic, Dai Xiaoxiao, Liang Ma, and Hyunseok Kim's demurrer to Plaintiffs Yisha Wang and Willie Hungyi Wei's complaint is OVERRULED. <u>First, third, and fourth causes of action for battery and breach of fiduciary duty</u> Redundancy of a cause of action is not grounds for sustaining a demurrer. (See <i>Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 889-890.) <u>Fifth cause of action for fraud</u> Plaintiffs sufficiently allege a cause of action for fraud. (Compl. ¶¶ 77-88.) Motion to Strike Complaint Defendants Mayenne Medical dba Skinspire Laser & Skin Clinic, Dai Xiaoxiao, Liang Ma, and Hyunseok Kim's motion to strike portions of Plaintiffs' complaint is GRANTED. Plaintiffs' allegations are directly related to the manner in which Defendants provided professional medical services. (See <i>Central Pathology Service Medical Clinic, Inc. v. Superior Court</i> (1992) 3 Cal.4th 181, 191-192.) As such, Plaintiffs were required to obtain an order from the Court allowing them to seek punitive damages pursuant to Code of Civil Procedure section 425.13. The Court ORDERS Defendants Mayenne Medical dba Skinspire Laser & Skin Clinic, Dai Xiaoxiao, Liang Ma, and Hyunseok Kim to file an answer within 10 days. Clerk to give notice.
11	Young vs. Ford Motor Company	Motion for Summary Adjudication

	30-2023-01364792-CU-BC-CJC	Ford Motor Company's unopposed motion for summary adjudication is GRANTED. Defendant moves for summary adjudication against Plaintiff on its fifth cause of action for fraudulent inducement – concealment. Defendant contends (1) it had no knowledge of a defect at time of sale, (2) it had no transactional relationship triggering a duty to disclose a known defect at time of sale, and (3) the economic loss rule bars Plaintiff's claim. (Notice, p. 1.) Defendant presents undisputed facts Plaintiff purchased the subject vehicle on 4/6/2018 and Ford was not a party to the sale transaction, nor is it alleged to be a principal of the dealership. (UMFs 1-3.) Plaintiff's discovery responses failed to identify specific defects of which Defendant had exclusive knowledge but failed to disclose. (UMFs 7-12.) "The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact." (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40 (<i>Rattagan</i>).) "A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment). Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. All of
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		these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances. Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (<i>Rattagan, supra</i>, 17 Cal.5th at 40-41 [cleaned up].) Defendant has met its burden to demonstrate there is no triable issue of fact as to elements of Plaintiff’s claim, including the requirement that Defendant be in a direct transactional relationship with Plaintiff and that Defendant be aware of a defect in Plaintiffs’ vehicle that it was unwilling or unable to fix. (See <i>Santana v. FCA US, LLC</i> (2020) 56 Cal.App.5th 334, 345–46.) The Court declines to address Defendant’s arguments regarding the economic loss rule. Clerk to give notice.
12	Justice vs. Thiede 30-2023-01355666-CU-MM-CJC	Motion for Summary Judgment/Adjudication Defendants Theodore J. Urbanski, Jr., D.D.S. and Theodore J. Urbanski, D.D.S., Inc.’s motion for summary adjudication is GRANTED as to medical battery and DENIED as to medical negligence. Summary judgment is DENIED. Plaintiff’s objections to evidence (ROA 265) are OVERRULED. Plaintiff concedes the acts constituting medical battery are attributable only to co-defendant, Craig C. Thiede, D.D.S. As to medical negligence, plaintiffs’ expert declarations of Jay Grossman, D.D.S. and Peter K. Moy, D.M.D. are sufficient to create a material dispute of fact as to whether Dr. Urbanski’s treatment fell below the standard of care and caused or contributed to decedent’s death, including being present for the November 3, 2022 procedure with the intention of participating when he knew he was on disability due to his PTSD; failing to step in, or ask if help was needed, and perform resuscitative efforts; failing to recognize when to call 911; and failing to call 911 or directing someone to call 911 by at least 8:43 a.m. (See <i>Hanson v. Grode</i> (1999) 76 Cal.App.4th 601, 607 [“When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment